

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TYRONE CARR,

Plaintiff,

- against -

THE CITY OF NEW YORK, JOSEPH CANALE,
and GREGORY SCOTT,

Defendants.
-----X

Index No.

Plaintiff designates
Bronx County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
1285 Washington Avenue, 12B
Bronx, New York 10456

County of Bronx

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 17, 2018

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
TYRONE CARR
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

THE CITY OF NEW YORK, 100 Church Street, New York, N.Y. 10007
JOSEPH CANALE, c/o PSA 7 Precinct, Bronx, New York
GREGORY SCOTT, c/o PSA 7 Precinct, Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TYRONE CARR ,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JOSEPH CANALE,
and GREGORY SCOTT,

Defendants.

-----X

Plaintiff, **TYRONE CARR** , complaining of the defendants,
by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth
and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
July 29, 2017, the plaintiff, **TYRONE CARR** , was and still is a
resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, and on
July 29, 2017, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
July 29, 2017, the defendant, **JOSEPH CANALE**, (hereinafter
referred to as "**CANALE**"), was and still is a resident of the City
and State of New York.

4. That, at all times hereinafter mentioned, and on July 29, 2017, the defendant, **GREGORY SCOTT**, (hereinafter referred to as "**SCOTT**"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **TYRONE CARR**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on October 3, 2017, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **TYRONE CARR**, testified at an oral examination pursuant to the General Municipal Law on October 15, 2018; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

5. That, at all times hereinafter mentioned and on July 29, 2017, the plaintiff, **TYRONE CARR**, was present with his friend, Angel DeJesus.

6. That the plaintiff, **TYRONE CARR**, and Angel DeJesus were standing in front of 1285 Washington Ave., in the County Bronx, City and State of New York.

7. That the plaintiff, **TYRONE CARR**, had just finished playing basketball in back of the aforementioned building, and was not posing a threat to anyone.

8. That the defendant, and/or defendants, their

agents, servants, and/or employees had approached the plaintiff, **TYRONE CARR**, in a threatening manner.

9. That the defendant and/or defendants, their agents, servants, and/or employees, had accused the plaintiff's friend, Angel DeJesus, of smoking in the aforementioned building.

10. That the plaintiff, **TYRONE CARR**, had explained to the defendant and/or defendants, their agents, servants, and employees, that his friend Angel DeJesus was not smoking at all in the building; and said defendant and/or defendants thereafter cursed and used foul language toward the plaintiff, **TYRONE CARR**.

11. That the plaintiff, **TYRONE CARR**, thereafter left the scene of occurrence, and went to a grocery store across the street.

12. That the plaintiff, **TYRONE CARR**, thereafter returned to the front of premises known as 1285 Washington Ave., in the County of Bronx, City and State of New York, and saw the same defendant and/or defendants, their agents, servants, and/or employees, approaching and threatening an elderly gentleman.

13. That the defendant, **CANALE**, and/or his agents, and servants and employees, grabbed the plaintiff, **TYRONE CARR**, by the neck, causing him to sustain injuries.

14. That the defendant, **CANALE**, and/or his agents, servants, and employees, had thrown the plaintiff, **TYRONE CARR**, with great force against a wall, which contained metal spikes.

15. That the defendant, **CANALE**, thereafter grabbed his

gun, in its holster, and spoke to the plaintiff, **JOSEPH CANALE**, in a threatening manner, causing plaintiff, **TYRONE CARR**, to be in great fear for his safety.

16. That the plaintiff, **TYRONE CARR**, never assaulted and never injured any defendant, police officer and any agent, servant, and/or employee of the defendant and/or defendants.

17. That the plaintiff, **TYRONE CARR**, never cursed or used foul language at the defendant and/or any other police officers, agents, servants, and employees of the defendant and/or defendants.

18. The plaintiff, **TYRONE CARR**, was injured as a result of the foregoing.

19. The plaintiff, **TYRONE CARR**, not prosecuted by the Bronx County District Attorney, as prosecution was declined.

AS AND FOR A FIRST CAUSE OF ACTION

20. That, on July 29, 2017, the plaintiff, **TYRONE CARR**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

21. That, the plaintiff, **TYRONE CARR**, was assaulted/battered without justification and without cause and without excuse.

22. That, the assault/battery took place in front of 1285 Washington Avenue, in the County of Bronx, City and State of New York, and other locations wherein the plaintiff, **TYRONE CARR**

was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

23. That, at all times hereinafter mentioned and on July 29, 2017, and for sometime prior thereto, defendants, **CANALE and SCOTT**, were New York City police officers, and/or agent servants and/or employees of the City, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

24. That, the aforementioned assault and battery of the plaintiff, **TYRONE CARR**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

25. That, by reason of the foregoing, the plaintiff, **TYRONE CARR**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

26. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. That, by reason of the foregoing, the plaintiff,

TYRONE CARR, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

28. That, the plaintiff, **TYRONE CARR**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 27 with the same force and effect as if hereinafter more fully set forth at length herein.

29. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

30. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

31. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendants, **CANALE and SCOTT**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the

defendant, **THE CITY**.

32. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendants, **CANALE and SCOTT**, who were employed by the defendant, **THE CITY**.

33. That, by reason of the foregoing, the plaintiff, **TYRONE CARR**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

34. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

35. That, by reason of the foregoing, the plaintiff, **TYRONE CARR** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

36. That the plaintiff, **TYRONE CARR**, repeats, reiterates, and realleges, each and every allegation as set forth

in paragraphs 1 through 35 with the same force and effect as if hereinafter more fully set forth at length herein.

37. That, on July 29, 2017, the plaintiff, **TYRONE CARR**, was caused to be detained without probable cause.

38. That, the plaintiff, **TYRONE CARR**, was detained/arrested without an arrest warrant, nor any type of warrant.

39. That, the false detainment/false imprisonment took place in front of 1285 Washington Avenue, in the County of Bronx, City and State of New York, and other locations and wherein the plaintiff, **TYRONE CARR**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

40. That, the aforementioned false detainment/false imprisonment of the plaintiff, **TYRONE CARR**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

41. That, the aforementioned false detainment/false imprisonment of the plaintiff, **TYRONE CARR**, was carried out by defendants, **CANALE and SCOTT**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

42. That, by reason of the foregoing, the plaintiff, **TYRONE CARR**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities;

and, upon information and belief, his injuries are permanent in nature and effect.

43. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

44. That, by reason of the foregoing, the plaintiff, **TYRONE CARR**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

45. The plaintiff, **TYRONE CARR**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 44, with the same force and effect as if hereinafter more fully set forth at length herein.

46. That the plaintiff, **TYRONE CARR** did not commit any illegal act, nor did the individually named defendant, **CANALE**, or defendant, **SCOTT**, have reason to believe he committed an unlawful act, either before or at the time he was falsely detained/imprisoned, assaulted and battered, excessive force was used against him; and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

47. That at all times hereinafter mentioned, the defendants, **CANALE and SCOTT**, were employed in their respective capacity by the defendant, **THE CITY** and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

48. Defendants, **CANALE and SCOTT**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **CANALE and SCOTT**, knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

49. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **TYRONE CARR**, of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **TYRONE CARR**, to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **TYRONE CARR**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and

56. That the deprivation of plaintiff, **TYRONE CARR's** Constitutional rights was the result of the defendants, **CANALE's** and **SCOTT's**, false detainment of the plaintiff, **TYRONE CARR**, without probable cause.

57. That the deprivation of plaintiff, **TYRONE CARR's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

58. That the deprivation of plaintiff, **TYRONE CARR's** Constitutional rights was the result of the defendants, **CANALE's** and **SCOTT's**, use of excessive force.

59. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **TYRONE CARR**.

60. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false detainment/imprisonment, assault and battery, as well as, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **TYRONE CARR**, was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

61. That, by reason of the foregoing, the plaintiff

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,

TYRONE CARR

Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

ATTORNEY'S VERIFICATION

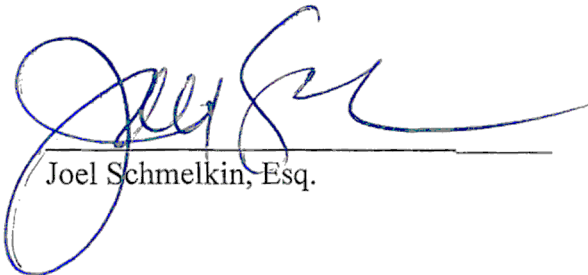
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

Joel Schmelkin, an attorney admitted to practice law in the State of New York, states, the following:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff because the plaintiff does not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C.

Dated: New York, New York
 October 17, 2018



Joel Schmelkin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TYRONE CARR,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOSEPH CANALE,
and GREGORY SCOTT,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s) Tyrone Carr

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: October 17, 2018

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____, 20____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007